

24SMCV03162 24SMCV03162

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Case Number: 24SMCV03162 Hearing Date: August 24, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT 207

HEARING DATE August 24, 2026

CASE NUMBER 24SMCV03162

MOTIONS (1) Reconsideration & (2) Vacate

MOVING PARTY Plaintiff Justin Daney

OPPOSING PARTY Defendant Timothy Meagher

MOTIONS

This case arises from a motor vehicle collision. On June 28, 2024, Plaintiff Justin Daney ("Plaintiff"), represented by the Law Offices of D. Hess Panah & Associates, filed suit against Defendant Timothy Meagher (Defendant) alleging a single cause of action for negligence.

On April 15, 2025, Burtchaell Law, APC associated in as lead/trial counsel for Plaintiff, alongside Law Offices of D. Hess Panah & Associates (now known as "Injury Network of California, APC") as co-counsel.

Plaintiff passed away intestate on October 11, 2025. On March 18, 2026, the Court granted Plaintiff's motion to substitute Hope Daney, by and through her Guardian ad Litem, Haley Dare Sullivan, as Plaintiff's successor-in-interest.

On July 21, 2026, the Court granted Defendant's unopposed motion to strike allegations of general damages on the grounds that pain and suffering are no longer available now that this is a survival action.

Plaintiff now moves for reconsideration of the Court's July 21 order pursuant to Code of Civil Procedure section 1008, subdivision (a) and to vacate the order pursuant to Code of Civil Procedure section 473, subdivision (b). Both motions are brought on the grounds that while Panah's firm was served with notice of the motion to strike, neither Plaintiff nor the Burtchaell firm were served with or had actual notice of the hearing until after it occurred.

Defendant has filed a combined opposition to the motions and Plaintiff replies.

LEGAL STANDARDS

I. VACATE/SET ASIDE – DISCRETIONARY AND MANDATORY RELIEF

"Proceeding to judgment in the absence of a party is an extraordinary and disfavored practice in Anglo-American jurisprudence: The policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary." (Au-Yang v. Barton (1999) 21 Cal.4th 958, 963 [cleaned up].)

Code of Civil procedure section 473 "includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (Minick v. City of Petaluma (2016) 3 Cal.App.5th 15, 25 (hereafter Minick).) "Section 473 is a remedial statute to be "applied liberally" in favor of relief if the opposing party will not suffer prejudice. Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails." (Minick, supra, 3 Cal.App.5th at p. 24

[cleaned up].)

The party or the legal

representative must seek such relief “within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b)); see *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 [“because more than six months had elapsed from the entry of default, and hence relief under section 473 was unavailable”]; *People v.*

The North River Ins. Co. (2011) 200 Ca.App.4th 712, 721 [motion for relief under section 473 must be brought “within a reasonable time, in no case exceeding six months”]). “The six-month limit is mandatory; a court has no authority to grant relief under section 473, subdivision (b), unless an application is made within the six-month period.” (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340, citations omitted.)

A.

Discretionary

Relief

Per Code of Civil Procedure

section 473, subdivision (b), a court may “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.”

B.

Mandatory

Relief

Notwithstanding any other requirements of this

section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

(Code Civ. Proc., § 473, subd. (b).) “In considering whether the trial court properly denied relief under section 473(b), the first question is the sufficiency of defendants’ showing of attorney fault, if believed, to trigger the mandatory relief provisions of that statute.” (Standard Microsystems Corp. v. Winbond Electronics Corp. (2009) 179 Cal.App.4th 868, 896, disapproved on other grounds by Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830 (hereafter Standard).) “Under section 473(b), a party is entitled to relief from a default and resulting judgment whenever, on timely application for relief, his attorney ‘attest[s] to his or her mistake, inadvertence, surprise, or neglect’ in connection with the default or the judgment.” (Ibid.)

II.

RECONSIDERATION

Under Code of Civil Procedure

section 1008, subdivision (a), “[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make an application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008, subd. (a).) Where the statutory requirements are met, reconsideration should be granted; upon reconsideration, however, the court may simply reaffirm its original order. (Corns v. Miller (1986) 181 Cal.App.3d 195, 202.)

DISCUSSION

I.

TIMELINESS

A motion for reconsideration must be brought within 10 days after notice of entry of the written order.

(Code Civ. Proc., § 1008, subd. (a).)

A motion to vacate must be brought within “a reasonable time” not to

exceed six months. (Code Civ. Proc., § 473, subd. (b).)

Here, notice of entry of the ruling was provided electronically on July 21, 2026. Therefore, the Court finds that both motions, which were filed on July 31, 2026, are timely.

II.

MERITS

a. Motion to Vacate

In support of the motion to vacate, Plaintiff advances the attorney Declaration of Blake E. Burtchaell which provides:

7. Defendant filed the Motion to Strike on or about June 3, 2026 and served it on June 4, 2026 by email to addresses associated with Injury Network of California, APC only. The proof of service did not identify Burtchaell Law, its mailing address, , , or any other Burtchaell Law address. A true and correct copy of the Motion to Strike, including its proof of service, is attached as Exhibit C.

8. Neither I nor any other attorney or staff member at Burtchaell Law received Defendant's Motion to Strike, the hearing reservation, or notice of the July 21, 2026 hearing before the hearing occurred. Because Burtchaell Law did not receive the motion or hearing notice, Plaintiff did not file an opposition, and no attorney appeared for Plaintiff at the hearing. The Court granted the motion as unopposed and without leave to amend.

9. Neither I, Burtchaell Law, Injury Network, nor Plaintiff made any deliberate or strategic decision to permit the Motion to Strike to proceed unopposed.

10. On July 23, 2026, I obtained Defendant's Notice of Ruling from Plaintiff's cocounsel. This was the first time I learned that Defendant had filed the Motion to Strike and that the Court had granted it. At 7:36 a.m. on July 24, 2026, I emailed defense counsel explaining the

service failure and advising that Plaintiff would seek ex parte relief. A true and correct copy of that email is attached as Exhibit F.

[...]

16. Had Burtchaell Law received Defendant's motion, Plaintiff would have timely opposed it, and I believe Plaintiff would have defeated it outright. Justin Daney was injured in a motor vehicle collision on July 19, 2022 and filed this action on June 28, 2024, while he was alive. C.C.P. sections 377.21 and 377.31 provide that a pending action is continued, not commenced anew, when a successor in interest is substituted in; Hope Daney's substitution on March 18, 2026 continued this same, already-pending action.

17. Independently, Code of Civil Procedure section 377.34, subdivision (b), added by Senate Bill 447 and in effect through January 1, 2026, permits recovery of pain, suffering, and disfigurement damages where the action or proceeding was filed on or after January 1, 2022, and before January 1, 2026. This action was filed June 28, 2024, within that window. Defendant's own authority, *Adams v. Superior Court* (2011) 196 Cal.App.4th 71, 78-79, defines a survival cause of action as one that existed while the decedent is alive and survives the decedent. Thus, confirming that Justin Daney's cause of action existed, and was filed, in 2024, not upon Hope Daney's later substitution.

18. Plaintiff would also have argued that Defendant's Motion to Strike improperly treated the original Complaint, which was answered on October 8, 2024, nearly twenty months before the June 3, 2026 Motion to Strike, as newly subject to a motion to strike under Code of Civil Procedure section 435, subdivision (b)(1); that the relief Defendant requested was broader than its own theory could support, since it sought to strike the entire prayer for general damages rather than only the narrow component Defendant contends is time-barred; and that any order should not have been entered without leave to amend given the Court's prior order denying amendment without prejudice on purely procedural grounds.

(Burtchaell
Decl. ¶¶ 7-10, 17-18.)

Plaintiff also advances the

Declaration of Vania Nemanpour, counsel with Panah's firm, which provides as follows:

5. On June 2, 2026, defense counsel communicated with Injury Network concerning the damages allegations later challenged in Defendant's Motion to Strike. During that exchange, I advised defense counsel: "Please call Blake. He is now cc'd here. He is handling this case." Burtchaell Law thereafter responded directly to defense counsel and requested that its office be included on all future correspondence.

6. On or about June 4, 2026, Defendant electronically transmitted its Motion for Order Striking Portions of the Complaint to email addresses associated with Injury Network. Defendant's proof of service did not include Burtchaell Law, APC, , or any other email address using Burtchaell Law's domain.

7. Injury Network failed to observe at the time the filing was received that Defendant's proof of service omitted Burtchaell Law.

8. Due to my mistake, inadvertence, and neglect, I did not ensure that Defendant's Motion to Strike, Plaintiff's opposition deadline, or the July 21, 2026 hearing was properly calendared by Injury Network.

9. Due to my mistake, inadvertence, and neglect, I also did not forward Defendant's Motion to Strike or the hearing information to Burtchaell Law.

10. Because the motion and hearing were not calendared and the papers were not forwarded, neither Injury Network nor Burtchaell Law filed an opposition to Defendant's Motion to Strike.

11. Neither I, Injury Network, Plaintiff, nor Burtchaell Law made a deliberate or strategic decision to permit the Motion to Strike to proceed unopposed.

12. Plaintiff did not authorize either counsel to waive an opposition, concede Defendant's legal position, abandon any category of damages, or permit Defendant's motion to be granted without opposition.

13. Had I recognized that Burtchaell Law had been omitted from

service, I would have immediately forwarded the Motion to Strike to Burtchaell Law and confirmed that the opposition deadline and hearing were calendared.

14. Had the Motion to Strike been calendared or forwarded to Burtchaell Law, Burtchaell Law would have timely prepared and filed an opposition on Plaintiff's behalf.

15. Injury Network subsequently received or obtained Defendant's July 21, 2026 Notice of Ruling stating that the Court had granted the Motion to Strike as unopposed and without leave to amend.

16. On July 23, 2026, Injury Network provided the Notice of Ruling to Burtchaell Law. I understand this was the first time Burtchaell Law learned that Defendant had filed the Motion to Strike and that the Court had granted it.

17. The copy of the Notice of Ruling provided to Burtchaell Law stated that the Court's tentative ruling was attached and incorporated by reference. However, no tentative ruling was included in the copy available to Injury Network and provided to Burtchaell Law.

[...]

19. The failure to oppose Defendant's Motion to Strike resulted from my mistake, inadvertence, and neglect in failing to recognize that Burtchaell Law had been omitted from service, failing to calendar the motion and hearing, and failing to forward the papers to Burtchaell Law. It was not caused by any intentional conduct or decision by Plaintiff.

20. I accept responsibility for failing to ensure that the Motion to Strike and hearing were calendared and forwarded to Burtchaell Law.

21. Injury Network joins in and supports Plaintiff's request that the Court vacate the July 21, 2026 order pursuant to Code of Civil Procedure section 473, subdivision (b), and restore Defendant's Motion to Strike to the calendar for full briefing and hearing.

22. Alternatively, Injury Network supports staying the July 21, 2026 order and setting an expedited briefing and hearing schedule so that the Motion to Strike may be decided on a complete record before the September 1, 2026

Trial Readiness Conference.

[...]

25. When defense filed their Motion to Strike on or around June 4, 2026, my office (sic) did not notice Burtchaell Law wasn't notified, and did not notify Burtchaell Law. INCA did not prepare an opposition since Burtchaell Law handles all law and motion.

(Nemanpour

Decl. ¶¶ 5-17, 19-22, 25.)

Thus, counsel has demonstrated that the failure to oppose the Motion to Strike was due to counsel's mistake, inadvertence, surprise, or excusable neglect.

In opposition, Defendant argues that the declarations do not take true accountability for the error, and instead attempt to shift the blame onto Defendant's counsel, who properly served the motion to strike on Panah's firm, which is one of Plaintiff's counsels of record in this case. The Court disagrees. The Nemanpour Declaration takes accountability for Panah's firm's failure to recognize that the Burtchaell firm was not served or forward the moving papers to Burtchaell for handling the motion practice.

Defendant also argues that Section 473, subdivision (b) requires that a copy of the proposed pleading be attached to the motion, and therefore the motion should be denied on procedural grounds, due to Plaintiff's failure to actually attach a proposed opposition brief to the motion to strike.

In reply, Plaintiff points out that an opposition to a motion is not a "pleading." Plaintiff further argues that its obligation to provide an opposition was not triggered, due to Defense counsel's failure to properly serve it, pursuant to Code of Civil Procedure section 1005, subdivision (b).

As to Plaintiff's second point, the Court disagrees that service was improper.

Service must be effectuated on Plaintiff. Here, it was, via Panah's firm as Plaintiff's counsel. While the Court agrees that Defense counsel should have also served Burtchaell, it cannot say that service on Plaintiff was improper under Code of Civil Procedure section 1005, which is all the Code requires.

Regarding Plaintiff's failure to attach a proposed opposition brief, the Court acknowledges that Section 473, subdivision (b) also applies to setting aside/vacating defaults and entries of defaults, for which the Code requires the defaulting defendant to provide a proposed responsive pleading. Further, the Court recognizes that because the Burtchaell firm did not have actual notice of the motion to strike until July 23 – two days after the hearing on the motion, and because it was rushing to file both a motion for reconsideration and a motion to vacate within the strict, 10-day deadline of Code of Civil Procedure section 1008, it did not have time to draft an opposition brief before filing the instant motions. As such, the Court does not find Plaintiff's failure to attach a proposed opposition brief procedurally fatal to the motion.

Therefore, the Court grants Plaintiff's motion to vacate and vacates the July 21, 2026 ruling on Defendant's motion to strike. Further, the Court finds it appropriate to re-set the hearing on the motion to strike so the parties can fully address the merits.

b. Reconsideration

Plaintiff also moves for reconsideration of the Court's July 21, 2026 Order granting Defendant's unopposed motion to strike on the grounds that Defendant's failure to serve the Burtchaell firm, as described more fully in connection with Plaintiff's motion to vacate, as well as Burtchaell's substantive legal arguments in opposition to the motion to strike, constitute new or different facts, circumstances, and law that were not considered by the Court.

As discussed more fully above, the Court agrees that Defendant's failure to serve the Burtchaell firm, and Burtchaell's lack of actual knowledge regarding the hearing on the motion to strike warrant vacating the Court's July 21, 2026 ruling and resetting the motion to strike for hearing. It also adequately explains Plaintiff's failure to raise certain legal arguments at the hearing on the motion to

strike.

Because the Court is vacating the July 21, 2026 order and rescheduling the hearing on Defendant's motion to strike, the Court denies Plaintiff's motion for reconsideration as moot.

CONCLUSION

Finding the failure to oppose Defendant's motion to strike was due to counsel's mistake, surprise, inadvertence, and/or excusable neglect, the Court grants Plaintiff's motion to vacate the Court's July 21, 2026 ruling, and denies Plaintiff's motion for reconsideration as moot.

Further, the Court reschedules Defendant's motion to strike to be heard on October 22, 2026 at 8:30 A.M. in Department 2007. Opposition and reply papers shall be filed and served under Code of Civil Procedure section 1005 in accordance with the October 22, 2026 motion hearing.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED:

August 24, 2026 _____/s/_____

Michael E. Whitaker

Judge
of the Superior Court